

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Threshold Denial Under Rule 8

Entered February 3, 2026

The City of Norvale's February 2 motion for a stay pending appeal is denied without prejudice because it does not satisfy the threshold requirements of Federal Rule of Appellate Procedure 8(a)(2). The Court does not reach likelihood of success, irreparable injury, harm to the Piedmont Booksellers Guild, or the public interest.

Rule 8 ordinarily requires an applicant to move first in the district court for a stay of an order pending appeal. A motion made initially in this Court must either show that moving first below would be impracticable or state that the requested relief was sought and denied, including the district court's reasons. Local Rule 8 likewise expects the relevant applications, rulings, and record materials needed for informed emergency review.

The City's motion describes the January 23 preliminary injunction and presents an extensive argument under *Nken v. Holder*. It does not say that a stay was requested from the district court, identify any district ruling on such a request, provide that court's reasons, or explain with concrete facts why an application below could not practicably be made. Its appendix contains the injunction and merits materials but no stay application or stay ruling from the originating court.

These are not technical omissions that the Court may infer away from urgency alone. District-first presentation allows the judge familiar with the record to address temporary administration and permits this Court to review stated reasons rather than act as the first tribunal considering suspension.

The Missing Rule 8 Showing

The motion says that planning for a February 14 fair is under way and asks for expedited action. A looming date may explain why a motion deserves prompt treatment once it is properly before the Court. It does not establish that the district court was unavailable, unable to receive a filing, or incapable of acting within the relevant period. The motion supplies no declaration describing an attempted filing, chambers communication, closure, reassignment, or other impediment.

Nor does the motion permit the Court to determine whether relief below was requested and refused. It contains no date of application, docket entry, opposition, reply, oral ruling, written order, or account of the originating court's rationale. Rule 8(a)(2)(A) requires the applicant to choose and support one of two routes. Silence satisfies neither route, even when the motion includes a detailed presentation of the stay factors.

The requirement serves practical and institutional purposes. The district court can clarify its own operative command, assess a proposed temporary arrangement against the evidentiary record, and state whether immediate enforcement threatens either party. If it denies relief, its reasons sharpen appellate review. If circumstances make that sequence unavailable, a specific account enables this Court to determine whether initial appellate consideration is justified.

The City bears the burden of putting those facts before the Court. The Court will not search docket materials not identified in the motion, assume that an unmentioned request occurred, or construct an excuse from the ordinary pressures of event administration. The defect therefore precedes consideration of discretionary relief.

Disposition

Because the Rule 8 gateway has not been met, the Court expresses no view on the strength of the City's tailoring, specificity, or security arguments. It likewise makes no finding about operational injury, the Guild's expressive and planning interests, or the relative public consequences of temporarily applying or restraining Ordinance N-2025-18. Nothing in this order should be cited as a determination of those questions.

Denial is without prejudice to a renewed motion that complies with Rule 8 and Local Rule 8. A renewed filing must state whether the City first sought the same relief below. If relief was sought and denied, the filing must provide the application, response if any, ruling, and reasons. If initial district-court presentation cannot practicably occur, the City must identify the concrete impediment, relevant dates, efforts made, and sworn support for disputed facts.

The preliminary injunction remains in effect according to its terms. Filing an interlocutory appeal did not suspend it, and this threshold order creates no administrative stay. The City and persons bound by the injunction must continue to comply unless a court with authority enters different relief. The underlying appeal remains pending and will proceed on the schedule fixed by later order.

The Clerk shall transmit this order promptly to counsel. Any renewed emergency motion shall identify this order, state the opposing party's position, and include a proposed duration and precise terms. The Court reserves the authority to set an expedited response. Entered at the direction of the panel on February 3, 2026.